Policy & Procedures Manual

Colorado Licensed Real Estate Brokerage

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TABLE OF CONTENTS

I. Introduction & Company Overview
II. Mission Statement & Core Values
III. Independent Contractor Relationship
IV. General Office Procedures
V. Brokerage Policies & Agency Relationships
VI. Compliance with Fair Housing & License Laws
VII. Typical Real Estate Transactions
VIII. Commission Policies
IX. Earnest Money & Trust Fund Handling
X. Back-up Contracts
XI. Closings
XII. Financing & Non-Qualifying Assumptions
XIII. Guaranteed Buyouts
XIV. Property Listing Procedures & Release of Listings
XV. Brand, Marketing & Advertising Policies
XVI. Commission Disbursement & Documentation
XVII. License Renewals, Transfers & Continuing Education
XVIII. Delegation of Authority & Supervision
XIX. Leasing & Property Management
XX. Team Structure
XXI. Use of Personal Assistants
XXII. Access to Properties
XXIII. Handling of Confidential Information
XXIV. Personal Identifying Information (PII) Policy
XXV. Errors & Omissions Insurance
XXVI. Policy Against Harassment & Non-Violent Workplace
XXVII. Legal Issues & Litigation Handling
XXVIII. Affiliated Business Arrangements (ABA)
XXIX. Technology, Social Media & Data Security
XXX. Disclosures & Disclaimers
XXXI. Agent Acknowledgement & Signature Page

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I. INTRODUCTION

This Policy and Procedures Manual ("Manual") governs the operation of The Miller Group, LLC (the "Company" or "Brokerage"), a Colorado licensed real estate brokerage. This Manual applies to all Associate Brokers and licensees (collectively, "Associates") affiliated with the Company as independent contractors, and to all Company staff.

The Company is licensed by the Colorado Real Estate Commission ("CREC"). The Employing Broker is responsible for supervision of all Associates and compliance with all applicable Colorado statutes, CREC Rules and Regulations, and the policies of this Manual.

This Manual is designed to provide a clear framework for conducting real estate business under the Company umbrella. Associates are responsible for reading, understanding, and complying with all provisions herein. The Company reserves the right to amend this Manual at any time; revisions will be distributed electronically and the most current version controls.

Non-Compliance: Failure to comply with the policies in this Manual may result, at the Employing Broker's sole discretion, in suspension, withholding of commissions, or termination of the Associate's independent contractor relationship with the Company.

II. MISSION STATEMENT & CORE VALUES

The Miller Group, LLC is dedicated to delivering exceptional real estate services with integrity, professionalism, and unwavering commitment to our clients and community.

Core Values

- Integrity — We act honestly and transparently in every interaction.
- Client-First — Our clients' interests guide every decision we make.
- Excellence — We hold ourselves to the highest professional standards.
- Community — We invest in the communities we serve.
- Collaboration — We support one another and cooperate with the broader real estate community.
- Accountability — We own our results and continuously improve.

III. INDEPENDENT CONTRACTOR RELATIONSHIP

Each Associate affiliated with the Company has executed an Independent Contractor Agreement ("ICA"). Associates are independent contractors, not employees. No employer-employee relationship, partnership, or joint venture is created or implied. The Company will not withhold federal or state income taxes, Social Security, unemployment insurance, or workers' compensation on behalf of Associates. Associates are solely responsible for all tax obligations arising from their compensation.

At-Will Association

Association with the Company is at-will and may be terminated by either party at any time, with or without cause, subject to the terms of the ICA. In the event of termination, the Associate must cooperate with the Company regarding the orderly transfer of listings and pending transactions.

ICA Controls

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In the event of a conflict between this Manual and the ICA, the ICA shall govern. This Manual does not modify the ICA but supplements it with operational policies and procedures.

IV. GENERAL OFFICE PROCEDURES

4.1 License Requirements

Associates must maintain a valid Colorado real estate license in active, good standing at all times. Failure to renew a license on time may result in immediate suspension of the Associate from all real estate activity and potential disassociation from the Company. The Associate must promptly notify the Employing Broker of any lapse, suspension, or investigation affecting their license.

4.2 Office Hours & Access

The Company's primary office maintains regular business hours. The Employing Broker and management staff are available during normal business hours and reasonably available by phone or email outside of those hours. Associates must be reachable by phone and email and should respond to voicemails and emails within 24 hours.

4.3 Professional Conduct

All Associates, as members of the National Association of REALTORS® and the applicable local Board, are expected to be familiar with and comply with the NAR Code of Ethics. Associates shall conduct themselves professionally in all interactions with clients, cooperating brokers, and the public.

4.4 Business Cards, Signs & Marketing Materials

The Company will assist Associates in creating business cards, for-sale signs, and email accounts consistent with Company branding. All marketing materials must prominently display the Company name and conform to Company graphic standards. Associates are responsible for ensuring signs comply with applicable municipal, HOA, and MLS requirements and must remove signs promptly upon listing expiration, cancellation, or closing.

4.5 MLS Membership

Associates are required to join the applicable Multiple Listing Service (MLS) and maintain membership in good standing. Associates must comply with all MLS rules and regulations. Fines or penalties levied by the MLS due to an Associate's non-compliance are the sole responsibility of the Associate. Failure to maintain current MLS membership may be grounds for disassociation.

4.6 Association Memberships & Dues

All Associates are required to maintain current membership in the National Association of REALTORS®, Colorado Association of REALTORS®, and the applicable local Board of REALTORS®. Dues are payable directly by each Associate to the appropriate organization. Failure to maintain membership may result in disassociation.

4.7 Fees & Commissions

All fees and commissions earned in connection with Company transactions must be made payable to The Miller Group, LLC, unless otherwise specified in a written Commission Disbursement Authorization ("CDA") approved by Company management. Associates will be paid consistent with the terms of their ICA and Compensation Agreement.

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4.8 Deductions

Any expenses incurred by the Associate and owed to the Company, including advertising, supplies, signs, unpaid advances, or other agreed expenses, may be deducted from the next commission payment due to the Associate.

4.9 Tax Reporting

At year-end, the Company will issue IRS Form 1099 to each Associate for compensation paid. Associates are solely responsible for their own tax obligations and are strongly encouraged to maintain accurate records and obtain independent tax advice.

4.10 Personal Transactions

Associates are permitted a maximum of two (2) personal property transactions per calendar year where no Company commission split is owed. The Associate must be named as Buyer and/or Seller. Associates must disclose in writing their license status in any transaction in which they have an ownership interest or where a financial interest exists. Associates may not act as a For Sale By Owner (FSBO). All personal transactions must be conducted in compliance with CREC Rule 6.17 and this Manual.

4.11 Vacations & Absences

Associates are responsible for arranging coverage of all pending client matters and transactions during any planned absence. The Employing Broker must be notified in advance of any absence that may affect active listings, pending transactions, or client obligations.

4.12 Anti-Trust Compliance

Associates are prohibited from engaging in any verbal or written discussions with agents or brokers of competing firms regarding: (a) setting commission rates or fees charged to clients; (b) boycotting or refusing to do business with any competitor; or (c) setting or establishing rates of cooperative compensation. Violations of anti-trust laws may result in immediate termination and legal liability.

4.13 Do-Not-Call Registry

Associates must comply with the Federal Trade Commission's National Do-Not-Call Registry and all applicable federal and state telemarketing laws. Associates may not contact any person listed on the registry unless an exemption applies (e.g., prior written permission or an established business relationship within 18 months). Cold calls may not be placed before 8:00 AM or after 9:00 PM local time. Fines for violations are the sole responsibility of the Associate.

4.14 Identity Theft & Confidentiality

Associates must handle all client files, documents, and data containing personally identifiable information (PII) with strict confidentiality. Files must be kept secure and disposed of properly. See Section XXIV for full PII Policy.

V. BROKERAGE POLICIES & AGENCY RELATIONSHIPS

In all transactions, The Miller Group, LLC Associates must operate under a clearly defined and disclosed brokerage relationship. The Company recognizes the following relationship types under Colorado law:

5.1 Recognized Brokerage Relationships

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A. Single Agent (Seller's Agent or Buyer's Agent exclusively) — The Associate represents one party with full fiduciary duties including loyalty, confidentiality, obedience, disclosure, and accounting.

B. Transaction Broker — The Associate assists one or more parties throughout the transaction without acting as an advocate or fiduciary for either party, providing facilitative services only.

5.2 Designated Brokerage

Consistent with Colorado's Designated Brokerage law (C.R.S. § 12-10-404), brokerage relationships are established at the Associate level, not the Company level. Two Associates within the Company may represent Buyer and Seller respectively in the same in-Company transaction. There is no imputation of knowledge between Designated Brokers.

5.3 No Dual Agency

The Company does not permit an Associate to establish Single Agency with both the Seller (or Landlord) and the Buyer (or Tenant) in the same transaction. In-Company transactions where one Associate represents both parties must be handled under Transaction Brokerage, with all appropriate Change of Status disclosures provided to both parties.

5.4 Disclosure Requirements — CREC Rule E-35 / Rule 6.5

Written brokerage relationship disclosures must be made to every consumer prior to eliciting or discussing confidential information. The "Definitions of Working Relationships" form (CREC form DD25) must be provided in every applicable transaction. If disclosure is not signed, the Associate must note the date and time of delivery.

A. Seller Representation: Provide the Definitions of Working Relationships before entering into the listing agreement.

B. Buyer Representation: Provide the Definitions of Working Relationships and Brokerage Disclosure to Buyer as soon as practicable before executing any offer to purchase.

C. Transaction Brokerage: Provide the Brokerage Disclosure form; if unsigned, note delivery date.

5.5 Change of Status

A Change of Status form must be provided to both parties when an Associate advances from Single Agency to Transaction Brokerage in a transaction. Associates must use CREC-approved forms for all agency transitions.

5.6 Seller Agency Procedures

A. Execute the Exclusive Right to Sell Listing Contract designating the brokerage relationship.

B. Provide the Definitions of Working Relationships.

C. Obtain and maintain a completed Seller's Property Disclosure form.

D. Submit all listing documents to the office within 48 hours of mutual execution.

E. Oral listings are prohibited.

5.7 Buyer Agency Procedures

A. Execute the Exclusive Right to Buy Contract designating the brokerage relationship.

B. Provide the Definitions of Working Relationships.

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C. Oral buyer agency agreements are prohibited.

D. Submit all documents to the office within 48 hours of execution.

5.8 Conflicts of Interest

CREC Rule E-25 requires Associates to disclose any known conflict of interest to the Employing Broker in writing. Conflicts include, without limitation, any ownership interest in or compensation received from a settlement service provider (lender, title company, appraiser, inspector, etc.) related to a transaction. Associates must comply with all RESPA affiliated business arrangement disclosure requirements. See Section XXVIII.

VI. COMPLIANCE WITH FAIR HOUSING & LICENSE LAWS

The Company is committed to full compliance with the Federal Fair Housing Act, the Colorado Fair Housing Act, and all applicable local fair housing laws. The Company will not discriminate, nor assist in discrimination, in any real estate activity based on any protected characteristic, including but not limited to:

- Race, Color, Religion, Creed, National Origin, Ancestry
- Sex, Gender Identity, Sexual Orientation
- Physical or Mental Disability / Handicap
- Marital Status, Familial Status
- Any other characteristic protected by applicable federal, state, or local law

Prohibited Activities

The following activities are strictly prohibited:

- Discriminatory advertising or statements indicating a preference for, or exclusion of, any protected class
- Refusing to negotiate, sell, or rent housing based on protected classifications
- Misrepresenting the availability of housing
- Setting different terms and conditions based on protected classifications
- Refusing reasonable accommodations for persons with disabilities
- Harassment, threats, intimidation, or coercion of any person
- Blockbusting (persuading owners to sell for profit by exploiting fears about protected-class neighbors)
- Steering Buyers toward or away from neighborhoods based on protected characteristics
- Use of Buyer Love Letters in a manner that discloses protected characteristics and may influence a Seller in violation of Fair Housing law

Advertising

All advertising must focus on the property and its amenities — not on any preferred or excluded type of occupant. All advertising must include the Fair Housing logo and/or the Equal Housing Opportunity slogan. Associates must not exclude protected-class persons from any marketing campaign.

Colorado License Law

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In addition to the requirements of this Manual, all Associates must abide by Colorado Real Estate Commission Rules and Regulations and all Colorado License Law. Where any policy in this Manual conflicts with Colorado law, Colorado law supersedes. All references to "Rule" in this Manual refer to CREC Rules and Regulations and License Law.

VII. TYPICAL REAL ESTATE TRANSACTIONS

7.1 Contract Review

- **A.** Associates must turn in all executed contracts and associated documents to the Employing Broker within 48 hours of mutual execution. Any item requiring immediate attention must be flagged promptly.
- **B.** Associates must correct any deficiencies identified by the Broker in a timely manner and promptly notify the Broker if unable to do so.
- **C.** At closing, the Associate must confirm all required documents are in the file. No commission will be disbursed until the file is complete and compliant.
- **D.** Office files are the property of the Company. Access is restricted to the Associate(s) on the transaction, the Employing Broker, and designated Transaction Coordinators. Associates may copy documents from the file and must return originals.

7.2 Attendance at Closing

The Associate must attend closing personally, or arrange for the Employing Broker or another Company Associate to attend on their behalf. All closing documents must be reviewed for accuracy.

7.3 Closed File Procedures

Upon closing, Associates must verify all required documents are fully executed and uploaded to the Company file management system. All files must be compliant before commissions can be disbursed. The Company targets commission disbursement within 48 business hours of a complete and compliant closed file.

VIII. COMMISSION POLICIES

8.1 Sales Commissions

Commissions on all transactions are negotiable and are governed by the Exclusive Right to Sell Listing Contract. The commission rate for any listing is determined by the Associate and client, subject to minimum requirements set by the Employing Broker. Associates must obtain Employing Broker approval in writing before agreeing to any commission below the established minimum.

8.2 Cooperative Compensation

The Company strongly encourages cooperation with all cooperating brokers. The cooperating compensation offered in the MLS or by separate written agreement must be offered uniformly to all cooperating brokers on the same listing — differential offers to different brokers on the same property are prohibited.

8.3 Commission Splits

Commission splits are established in each Associate's ICA and Compensation Agreement. Splits are reviewed annually on the anniversary of the ICA based on Gross Commission Income (GCI)

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earned during the prior 12-month period. Splits are subject to change by Company management with reasonable notice.

8.4 Departing Associates

Upon termination of an Associate's relationship with the Company, the commission split in effect at the time of departure applies to any pending transactions. All payback provisions in the Associate's ICA remain in full force. The Company reserves the right to recoup costs advanced on behalf of the departing Associate.

8.5 Commission Credits

Any commission credit at closing to a party requires prior written approval from the Employing Broker, documentation of the amount and purpose, and lender approval reflected on the Settlement Statement.

8.6 Agreements Between Associates

All agreements regarding referrals or commission splits between Associates must be in writing, signed by all parties, on the Company's Referral Fee Agreement form. Undocumented shared-deal disputes will default to a 50/50 split; undocumented referral disputes will default to a 25% referral fee.

8.7 CMAs & BPOs

When preparing a competitive market analysis (CMA) or broker price opinion (BPO) for any purpose other than the anticipated sale or purchase of a property, Associates must comply with CREC Rule 6.12 and include the required disclaimer: "This evaluation was prepared by a licensed real estate broker and is not an appraisal. This evaluation cannot be used for the purposes of obtaining financing." Payment must be made to the Company and split per the Associate's current commission schedule.

8.8 New Development & Corporate Relocation

New development project commissions and corporate relocation referral arrangements are subject to case-by-case approval by the Employing Broker. Associates must notify the Employing Broker of any referral agreements associated with incoming relocation leads.

IX. EARNEST MONEY & TRUST FUND HANDLING

Proper trust fund handling is required by Colorado law. Improper handling may result in civil, criminal, and CREC disciplinary action against the Associate and the Company.

- **A.** Deposit. Earnest money must be deposited within five (5) business days of receipt, or as otherwise directed by Colorado Real Estate Commission Rules, with the earnest money holder identified in the Contract to Buy and Sell. Associates must NEVER accept earnest money in their personal name or accept cash payments from clients. It is illegal and strictly prohibited.
- **B.** No Dispute Release. When there is no dispute, the Associate must complete the Earnest Money Release form along with the Notice to Terminate, executed by both Buyer and Seller, designating the recipient.
- **C.** Disputed Earnest Money. If a dispute arises, the Associate and Employing Broker will attempt to assist the parties in resolution and encourage mediation. Disputed funds will not

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be released without prior written consent of both parties. The Earnest Money Holder may interplead funds to the court when appropriate. The Company will follow the forfeiture split designated in the Exclusive Right to Sell Listing Contract.

X. BACK-UP CONTRACTS

Caution must be exercised to ensure there are not two simultaneously enforceable contracts on the same property. Any back-up contract must include a clause making the Seller's obligations conditional upon termination of the prior contract.

A. Listing Broker. Buyer #2 must not be informed of Buyer #1 unless the Seller has authorized such disclosure. All backup clauses must be approved by the Seller or Seller's attorney, or derived from Company-approved backup contingency language.

B. Selling Broker. When the Associate is the Selling Broker representing one of two competing Buyers, all information known by that Associate about competing contracts or the competing Buyer must be shared with the Buyer the Associate represents.

Associates are encouraged to consult the Employing Broker before writing or accepting a back-up contract.

XI. CLOSINGS

Associates must attend closing personally or arrange for the Employing Broker or another Company Associate to attend on their behalf. The attending Associate assumes joint responsibility for the accuracy, completeness, and delivery of all appropriate closing documents.

After closing: update the MLS with appropriate sale information, review all closing documents for completion, and upload the complete closing package to the Company file management system. Commissions will not be disbursed until the file is fully compliant.

Required Closing Documents

- MLS Sold Sheet
- Seller Settlement Statement
- Buyer Settlement Statement
- CREC-approved Closing Instructions
- Tax Agreement & Utility Agreement
- Warranty Deed
- Real Property Transfer Declaration
- Commission Disbursement Authorization (CDA)
- Bills of Sale (if personal property involved)
- Referral Fee Agreement (if applicable)
- Power of Attorney (if applicable)
- Rental / Pre-Closing Occupancy Agreement (if applicable)
- Any additional miscellaneous closing documents

Associates must also refer to the transaction file checklist in the Company's document management system, as required documents may change.

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XII. FINANCING & NON-QUALIFYING ASSUMPTIONS

12.1 Conventional Loans

- **A.** Lender Recommendations. When recommending lenders, Associates must recommend a minimum of two lenders (ideally three) in no particular order.
- **B.** Loan Fraud. Associates must ensure all transaction agreements — including pre-contract and post-contract arrangements — are fully documented in the Contract to Buy and Sell and accurately reflected in the final Closing Statement. No side agreements or items paid outside of closing are permitted.
- **C.** Mortgage Origination. Associates may not be dually licensed as a mortgage loan originator/broker and a real estate broker. Any potential conflict of interest (e.g., a spouse or close associate serves as lender) must be immediately disclosed to the Company and all transaction parties. Active Mortgage Loan Originator licenses must be placed on inactive status.

12.2 Non-Qualifying Assumptions & Owner Financing

Associates must not participate in or draft contracts proposing non-qualifying assumptions, wrap-arounds, lease options, or installment land contracts without first consulting the Employing Broker and obtaining written consent. These transactions are strongly discouraged, require attorney approval, and must be undertaken only with full and complete disclosure to all parties.

All seller-carry financing documents (notes, deeds of trust, etc.) must be drafted by an attorney retained by the Seller or Buyer. Under no circumstances may an Associate prepare, draft, or edit financing documents.

XIII. GUARANTEED BUYOUTS

The Miller Group, LLC does not offer guaranteed buyout programs. No Associate may participate in or offer any guaranteed buyout program without the prior written permission of the Employing Broker.

Associates must not guarantee price appreciation. Investing in real estate is speculative. Associates must not form partnerships, LLCs, or other legal entities in connection with a client transaction without the assistance of legal counsel and prior disclosure to the Employing Broker.

XIV. PROPERTY LISTING PROCEDURES & RELEASE OF LISTINGS

14.1 New Listings

When obtaining a new listing, Associates must:

- **A.** Obtain a Seller's Property Disclosure and Lead-Based Paint Disclosure (if applicable) filled out and signed by the Seller.
- **B.** Comply with CREC Rule 6.11 regarding square footage disclosure and verification.
- **C.** Avoid quoting lot size, acreage, or fence lines without supporting documentation.
- **D.** Obtain new listing photography. Do not use photography or marketing materials from another agent without proper written permission and ownership verification.
- **E.** Provide the Definitions of Working Relationships (CREC agency disclosure).

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F. Have the Seller execute an Exclusive Right to Sell Listing Contract.

G. Submit all listing documents within 48 hours of mutual execution.

H. Avoid relying on prior offering brochures or MLS data without independent verification. Include a disclaimer on all marketing materials: "All information contained herein is deemed reliable but not guaranteed. Subject to errors, omissions, prior sale, changes or withdrawals without notice."

14.2 MLS Entry

All listings must be entered into the MLS within the timeframe required by MLS rules, unless the Seller provides written direction otherwise. The Associate must review the MLS listing for accuracy upon publication and promptly correct any errors. Fines for inaccurate or late MLS entry are the Associate's responsibility.

14.3 Coming Soon

Associates may market a property as "Coming Soon" prior to MLS entry only in compliance with CREC Commission Position Statement CP-44 and applicable MLS rules. Associates must not use Coming Soon status to improperly capture both sides of a transaction.

14.4 Listing Status Definitions

A. Withdrawn: Property temporarily removed from the market. Associate must provide the client with a "Termination of Marketing Efforts Without Terminating Listing" agreement.

B. Expired: Listing contract has expired or terminated early; property removed from the market.

C. Under Contract / Pending: A binding purchase agreement exists between Buyer and Seller.

14.5 Release of Listings

If a Seller requests a release of listing before termination, the Associate must consult the Employing Broker. All such requests are resolved on a case-by-case basis. Upon expiration without extension, the Associate must cease marketing and allow the MLS record to show Expired. All listings are taken in the name of the Company and remain Company property.

14.6 Photography & Syndication

The Company reserves the right to remove photos from the Company website or MLS that do not comply with standards or to which the Company does not own rights. All listings are eligible for MLS syndication; designation is made at time of MLS entry.

XV. BRAND, MARKETING & ADVERTISING POLICIES

All marketing and advertising by Associates, regardless of medium, must comply with all federal, state, and local fair housing laws and CREC Rule 6.10 (Advertising).

15.1 Company Name & Logo

The Company name and/or logo must be included in all advertisements and conform to Company graphic standards regarding style, color, and use. Advertisements must include the Fair Housing logo and/or the Equal Housing Opportunity slogan.

15.2 Websites

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Any Associate website that references Company affiliation must receive written approval from Company management before going live. Sites must display the Company name prominently, include a compliant privacy policy, and adhere to Company branding requirements.

15.3 Social Media

Associates using social media for professional purposes must:

- Ensure the Company name is visible within one click of any post relating to Company listings or activity.
- Be honest and transparent in every message, post, and comment.
- Not represent personal posts as official Company statements.
- Not share any confidential client, financial, or Company information on social media.
- Act professionally; avoid offensive, derogatory, vulgar, discriminatory, or untrue posts.
- Be careful about making superlative claims or portraying competing companies negatively.

All social media activity is considered on the record. The Associate takes full responsibility for social media content and must comply with any additional social media policies issued by the Company.

15.4 Fax & Email Advertising

Associates must comply with all state and federal laws governing unsolicited commercial fax and email advertisements. Exemptions include prior written permission or an established business relationship.

15.5 REALTOR® Trademark

Use of the REALTOR® name and mark must comply with NAR guidelines.

XVI. COMMISSION DISBURSEMENT & REQUIRED DOCUMENTATION

To receive commission disbursement, Associates must submit all required documents to the Company's file management system and obtain a fully compliant file. Commission will not be disbursed until the file is complete and a Commission Disbursement Authorization (CDA) is issued.

16.1 Contract Phase Documents

Within 48 hours of mutual execution, upload to the Company file system:

- Exclusive Right to Buy OR Brokerage Disclosure to Buyer
- Definitions of Working Relationships
- Contract to Buy and Sell Real Estate
- Counterproposal (if applicable)
- Earnest Money Receipt
- Seller's Property Disclosure
- Source of Water Addendum (if not in SPD)
- Square Footage Disclosure
- Lead-Based Paint Disclosure (if applicable)
- Wire Fraud Disclosure
- Title Commitment and Tax Certificate
- Closing Instructions

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- HOA Documents or confirmation of delivery
- Lender Letter
- Any Agreement to Amend/Extend or Addenda

16.2 Referrals

Any referral fee must be documented in a signed Referral Fee Agreement and included in the CDA prior to closing. Referring Associates will be paid consistent with their ICA. Non-Company brokers require a W-9 for payment processing.

16.3 Termination of Contract

Upon contract termination, a fully executed Notice to Terminate and Earnest Money Release must be filed with the Company. If representing the listing side, the MLS must be updated to Active status.

XVII. LICENSE RENEWALS, TRANSFERS & CONTINUING EDUCATION

17.1 License Renewal

Associates are solely responsible for renewing their Colorado real estate license as required by the CREC and for paying all associated renewal fees. Upon renewal, Associates must provide the Company with proof of renewal and certification of compliance with all continuing education requirements. Failure to timely renew is grounds for disassociation.

The CREC may audit any licensee for continuing education compliance. Associates receiving a CREC audit notice must promptly inform the Employing Broker and respond to the CREC within the required timeframes. The Company is not responsible for providing continuing education courses.

17.2 Transfer to the Company

Upon transferring to the Company, the Associate must sign the ICA, abide by this Manual, and complete all required onboarding documentation before engaging in any real estate activities.

17.3 Transfer Away from the Company

An Associate transferring their license to another brokerage must: (1) notify the Employing Broker in advance; (2) notify the CREC that the Associate no longer works under the Company; (3) cease all real estate activity in the Company name; and (4) assist with notification of clients. All active listings and Under Contract transactions remain with the Company, and the Employing Broker will designate a replacement licensee.

XVIII. DELEGATION OF AUTHORITY & SUPERVISION

18.1 Experienced Associates (2+ years)

The Employing Broker will reasonably supervise experienced Associates by:

A. Maintaining this Manual, providing it to each Associate for review and signature, and making it available for CREC inspection.

B. Reviewing all executed contracts to ensure competent preparation.

C. Reviewing transaction files to confirm required documents exist.

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18.2 Less Experienced Associates (<2 years)

In addition to the above, the Employing Broker will provide heightened supervision for Associates with fewer than two years of experience, including:

- **A.** Providing specific training in office policies and procedures.
- **B.** Being reasonably available for consultation.
- **C.** Providing assistance in preparing contracts.
- **D.** Monitoring transactions from contracting through closing.
- **E.** Reviewing documents in preparation for closing.
- **F.** Ensuring that the Employing Broker or an experienced Associate attends closings or is available for assistance.

18.3 Delegation

The Employing Broker may delegate supervisory authority to experienced Associates in writing. Any such delegation must be signed by the recipient Associate and maintained by the Employing Broker for CREC inspection. Delegated supervisory authority does not relieve the Employing Broker of overall supervisory responsibility.

XIX. LEASING & PROPERTY MANAGEMENT

Associates must obtain prior written approval from the Employing Broker before engaging in any leasing activities. The Company does not offer ongoing property management services. Leasing activities are limited to listing, advertising, tenant screening, and lease negotiation. Upon lease execution, the broker's duty to the parties is complete.

19.1 Leasing Procedures

1. Enter into an Exclusive Right to Lease Listing Contract.
2. Provide Definitions of Working Relationships to both Landlord and Tenant.
3. Provide the Tenant with Brokerage Disclosure to Tenant.
4. Provide a Change of Status form when advancing to Transaction Broker for both parties.
5. Use Lead-Based Paint Disclosure if applicable.
6. Use only Company-approved lease documents. Associates may not prepare unapproved lease documents.
7. The Company will not hold security deposits or accept and disburse lease payments. All monies must be handled directly between Landlord and Tenant per the lease terms.
8. All executed lease documents must be submitted to the Company within 48 hours of mutual execution. Lease commissions will not be disbursed until the file is complete.

19.2 Associate-Owned Property

Associates managing their own rental property are subject to Colorado license law and CREC Rules. Associates must disclose their broker license status and any conflict of interest to tenants in writing, use an attorney-drafted lease, and provide written brokerage relationship disclosures. Associates may not deposit rental proceeds for their own property into Company escrow accounts.

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XX. TEAM STRUCTURE

A "Team" exists when more than one Associate's GCI is combined. All Team members who are Associates must hold an active Colorado real estate license. Written documentation of all financial splits and work agreements must be on file with the Employing Broker.

All Team members must be interviewed and approved by the Employing Broker or management prior to joining. All Team member licenses are held by the Company at the Company's discretion. Team members ultimately report to the Employing Broker.

Team Leader Responsibilities

Team Leaders are responsible for ensuring all team members comply with this Manual, Company policies, and all applicable laws and regulations. Team Leaders will be held responsible for team member violations.

Confidentiality within Teams

Team members sharing access to confidential Buyer or Seller information must all be named in the applicable Exclusive Right Contract. Where a team member is involved in selling a team listing, both Associates must advance to Transaction Broker status using a Change of Status form. Team members may not exercise Single Agency for both sides of the same transaction.

Team Name & Marketing

All team advertising must prominently include "The Miller Group" or a clear reference to the Company. Teams may use the word "team" in their name. Teams may not use terms such as "realty," "real estate," "company," "corporation," "LLC," or similar language that implies a separate firm. Team advertising must never give the impression that the team is an entity independent of the licensed brokerage, consistent with CP-40.

XXI. USE OF PERSONAL ASSISTANTS

Associates may hire personal assistants consistent with CREC Commission Position Statement CP-20. Unlicensed assistants may not negotiate, list, sell, or otherwise practice real estate brokerage. Unlicensed assistants must promptly disclose to all parties that they are not a broker and identify the Associate for whom they work.

Permitted Tasks for Unlicensed Assistants

- **A.** Complete forms prepared for and directed by the Associate; may not independently draft legal documents or offer interpretations.
- **B.** Distribute pre-printed, objective property information prepared by the Associate.
- **C.** Perform clerical duties, including gathering listing information.
- **D.** If authorized by the Seller, provide property access, conduct showings, or open houses.
- **E.** Deliver paperwork to brokers, buyers, or sellers.
- **F.** Deliver financing documents prepared by lending institutions.
- **G.** Prepare market analyses on behalf of the Associate if approved and submitted by the Associate with required disclosures.
- **H.** Collect and receipt for earnest money deposits, security deposits, or rents.

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I. Schedule property repairs when the Associate has an existing agreement authorizing such repairs.

Associate Obligations

Associates hiring personal assistants become employers and assume all employer responsibilities. Associates must have a written agreement with each assistant. The Company is not responsible for assistant compensation, workers' compensation, or payroll taxes. Associates should consult with a payroll company or tax advisor.

XXII. ACCESS TO PROPERTIES

Property access is provided only as authorized in the Exclusive Right to Sell Listing Contract. Unless authorized by the Seller or listing agent, Associates must not provide access to any unlicensed person, including home inspectors, photographers, or other vendors.

A. Access to Company Listings: Authorized access type (lockbox, showing service, etc.) and persons permitted access must be specified in the Listing Contract.

B. The Company will not knowingly permit unlicensed persons access to Company listings without the Seller's written consent.

C. Access to Other Firms' Listings: Associates must comply with the access policies of the listing brokerage and MLS rules.

XXIII. HANDLING OF CONFIDENTIAL INFORMATION

The following information is confidential between a licensee and their Client under a Single Agency relationship:

A. The Seller or Landlord is willing to accept less than the listing price.

B. The Buyer or Tenant is willing to pay more than the offered price.

C. Information regarding the Client's motivating factors.

D. Information that a Client will agree to other financing terms.

E. Material information about a Client not required by law to be disclosed.

F. Facts or suspicions that may psychologically impact or stigmatize a Client's property.

G. All information required to be kept confidential pursuant to C.R.S. §§ 12-10-404, 12-10-405, and 12-10-407.

Inadvertent Disclosure

Associates must handle all office communications mindful of the potential that other Associates may represent parties with adverse interests. Situations where inadvertent disclosure may occur include sales meetings, shared equipment, shared electronic systems, in-office mailboxes, and social functions. Associates must take appropriate precautions in all such settings.

Disclosure within the Company

Single Agents must not disclose confidential client information to other Company Associates. Other Associates must not seek such information. Each Client must have a separate file accessible only to their Single Agent, the Employing Broker, and authorized personnel.

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Learning Confidential Information

Any Associate who learns confidential information about a Client of the Company is considered a Single Agent for that Client. If an in-Company transaction then arises between that Client and another Client, both must be informed that the Associate is working as a Transaction Broker, using a Change of Status form.

XXIV. PERSONAL IDENTIFYING INFORMATION (PII) POLICY

The Miller Group, LLC and its Associates are responsible for exercising appropriate care when handling Personally Identifiable Information ("PII") entrusted to the Company by clients and others. The Company has implemented technical, administrative, and physical security measures to protect PII from unauthorized access, disclosure, use, and modification.

Definition

PII is any information that permits the identity of an individual to be directly or indirectly inferred. Sensitive PII includes, but is not limited to:

- Social Security or taxpayer identification number
- Government-issued driver's license or identification card number
- Government passport number
- Employer, student, or military identification number
- Financial account number, credit or debit card number with access code
- Biometric data
- Passwords and pass codes

Handling Requirements

Sensitive PII must be accessed only by those with a legitimate need to know, stored on secure, password-protected devices or shared network drives, and physically secured (locked cabinet or desk) when not in use. Associates must not store PII on personal computers or unencrypted devices. When emailing Sensitive PII, Associates must password-protect or redact the sensitive information before transmission.

Disposal

Sensitive PII must be securely destroyed when no longer needed. Printed materials must be shredded; electronic media must be sanitized prior to disposal or reuse.

Incident Reporting

All privacy incidents — suspected or confirmed — must be reported to the Employing Broker immediately. Associates must document relevant information and must not forward compromised data when initially reporting an incident. Any Security Breach must be reported to the Employing Broker in writing immediately.

XXV. ERRORS & OMISSIONS INSURANCE

Associates must maintain, at their own expense, the mandatory Errors & Omissions (E&O) insurance required of all Colorado real estate licensees pursuant to C.R.S. § 12-10-204, together

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with any excess limits coverage offered under the Company's group plan while available, from a carrier approved by the Employing Broker.

The Employing Broker may require Associates to obtain E&O coverage from a specified carrier and/or with specific coverage limits. The Company may also obtain additional supplemental E&O insurance at the Associate's expense.

Associates are strongly encouraged to review the E&O policy exclusions in detail, particularly regarding transactions in which the Associate or their spouse has an ownership interest in the property.

XXVI. POLICY AGAINST HARASSMENT & NON-VIOLENT WORKPLACE

26.1 Anti-Harassment Policy

The Company provides and maintains a working environment free from all forms of harassment. Harassment based on race, color, religion, sex, national origin, disability, sexual orientation, gender identity, or any other protected characteristic is strictly prohibited.

Sexual harassment includes unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature that affects employment or association conditions, or creates a hostile environment. Additional examples include: leering, stalking, unwanted physical contact, sexually suggestive materials, and retaliation against persons reporting harassment.

Associates who believe they have been harassed must report the matter to the Employing Broker. All complaints will be investigated promptly. Confirmed harassment will result in disciplinary action up to and including termination of the ICA.

26.2 Non-Violent Workplace

The Company has zero tolerance for violence or threats of violence on Company property or in connection with Company business. Any Associate who engages in or threatens workplace violence will be immediately removed from Company premises pending investigation. Confirmed violations will result in termination. Weapons and explosives are prohibited on all Company premises.

Associates who are attacked or threatened with violence, or who witness such conduct, should immediately protect themselves and others, avoid escalation, and notify emergency personnel (911) and the Employing Broker.

XXVII. LEGAL ISSUES & LITIGATION HANDLING

Legal action is a last resort for dispute resolution. The decision to commence legal action is the sole prerogative of the Company. Associates must immediately consult the Employing Broker about any legal issue before taking action.

- **A.** Associates must notify the Employing Broker immediately upon receiving any written notice of a claim or potential claim against the Associate or Company.
- **B.** Associates must notify the Employing Broker immediately upon receiving any written notification from the CREC regarding a complaint or investigation. Responses to the CREC must be submitted within the stated timeframe and must be reviewed and approved by the Employing Broker before submission.
- **C.** Associates must cooperate fully with the Company in the defense of any claim.

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Allocation of Defense Costs

Costs of defense shall be allocated between the Company and the Associate in the same proportion as the commission split applicable to the transaction at issue. Associates shall be solely responsible for all defense costs if the claim arises from the Associate's failure to follow applicable law, regulation, or Company policy, or from the Associate's dishonest, fraudulent, criminal, or discriminatory conduct.

XXVIII. AFFILIATED BUSINESS ARRANGEMENTS (ABA)

An Affiliated Business Arrangement ("ABA") exists where a settlement service provider or its associate has an affiliate relationship with, or a direct beneficial ownership interest of more than one percent in, another provider of settlement services.

Associates must comply with CREC Rule 6.17 (Continuing Duty to Disclose Conflict of Interest and License Status) and CP-38 (Commission Position on Disclosure of Affiliated Business Arrangements and Conflicts of Interest).

Any Associate owning an interest in a settlement service provider (title, mortgage, appraisal, insurance, warranty, etc.) or in any entity providing client-related services (staging, cleaning, property management, etc.) must disclose such ownership to the Employing Broker and execute required disclosure forms.

Associates must, at their own expense, have an attorney prepare a RESPA-compliant Affiliated Business Arrangement Disclosure (AfBA) to provide to clients. A copy must be provided to the Company. Associates are strongly encouraged to disclose any financial benefit from a referral to a related service provider at the time the referral is made.

Associates must report all ABA involvements and changes annually to the CREC and provide proof of compliance to the Employing Broker.

XXIX. TECHNOLOGY, SOCIAL MEDIA & DATA SECURITY

Associates must comply with all Company IT and technology policies. The Company may issue updated technology policies from time to time; compliance is required. Associates are prohibited from using Company technology resources for:

- Illegal purposes, harassment, or discriminatory communications
- Promoting chain letters, junk mail, or games
- Sending unencrypted PII
- Attempting to circumvent security systems
- Violating MLS, CREC, or other trade association rules
- Any commercial purpose outside the scope of the ICA

Associates must secure all passwords and may not share user IDs or passwords. Any device using Company email must be password-protected. Associates must not download or install unauthorized software on Company devices.

Social Media

See Section XV for Social Media advertising requirements. Associates take full personal responsibility for all social media content. All social media activity related to Company business or listings is subject to Company review and must comply with this Manual.

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XXX. DISCLOSURES & DISCLAIMERS

30.1 Lead-Based Paint Disclosure

For every property built prior to 1978, the Seller or Landlord must receive and execute the federally required Lead-Based Paint Disclosure form and informational booklet. The form must be signed by the owner, Buyer/Tenant, and the Associate. The Associate must retain an executed copy in the office file. Every listing for a pre-1978 property must include the booklet and form. This is a federal health and safety law; fines for non-compliance are substantial and are the sole responsibility of the Associate. This form is not required for rentals of fewer than 100 days.

30.2 Owner's Property Disclosure Form

All properties listed or sold by the Company must have a Seller's Property Disclosure in the form approved by the CREC, with all known adverse material facts disclosed. Licensees are required to advise Buyers and Sellers of all known adverse material facts prior to the Buyer making an offer.

30.3 Property Information Disclaimer

Wherever property information is disseminated in print or online, the following disclaimer must be included:

> *"The Miller Group, LLC is a licensed real estate broker in Colorado and abides by Equal Housing Opportunity laws. All material presented herein is intended for informational purposes only. Information is compiled from sources deemed reliable but is subject to errors, omissions, changes in price, condition, sale, or withdrawal without notice. No statement is made as to accuracy of any description. All measurements and square footages are approximate. This is not intended to solicit property already listed. Nothing herein shall be construed as legal, accounting or other professional advice outside the realm of real estate brokerage."*

30.4 Square Footage Disclosure — CREC Rule 6.11

When advertising the square footage of a residential property, the Associate must disclose the source of that square footage on the CREC-approved Square Footage Disclosure form. If the Associate takes a measurement, they must disclose the methodology and advise that the measurement is for marketing purposes only. If square footage is sourced from another source (appraisal, assessor, building plans), that source and issuance date must be disclosed. Associates must not rely on known unreliable sources and must note any obvious mismeasurement.

XXXI. AGENT ACKNOWLEDGEMENT & SIGNATURE PAGE

All Associates affiliated with The Miller Group, LLC are subject to the policies and procedures set forth in this Manual, as amended from time to time. By signing below, the Associate acknowledges:

- Receipt and review of this Policy & Procedures Manual.
- Agreement to read, understand, and comply with all policies herein and any subsequent amendments.
- Understanding that this Manual represents current policies and may be changed by the Company at any time without advance notice.
- Understanding that there may be additional Company practices not specifically addressed in this Manual.

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Associate (Printed Name): _____ Date: _____

Associate Signature: _____ Date: _____

License Number: _____

Received by (Employing Broker): _____ Date: _____

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